

HOW TO FILE THIS PACKET

North Dakota Petition to Seal Criminal Records

Ground: Misdemeanor conviction sealing under Chapter 12-60.1

Case: 08-2018-CR-00123

Court: District Court, Burleigh County, North Dakota

County: Burleigh County

Judicial district: South Central Judicial District

WHAT IS IN THIS PACKET

1. Petition to Seal Criminal Records
2. [Proposed] Order to Seal Criminal Records
3. Proof of Service on the Prosecuting Attorney

THE ORDER YOU DO THINGS IN

1. Serve the prosecuting attorney first.
Serve the petition and proposed order on the prosecuting attorney; the prosecutor is expected, to the extent practicable, to notify and seek input from law enforcement, witnesses, victims, and correctional authorities.
Prosecuting attorney to serve: Burleigh County State's Attorney
Method of service: first-class mail
2. Complete and sign the Proof of Service after you have served.
3. File the Petition, the [Proposed] Order and the Proof of Service together.
File with: Clerk of District Court, Burleigh County, South Central Judicial District
4. Keep a complete copy of everything you filed.

WHERE TO FILE

The existing criminal case for the offence, under N.D.C.C. § 12-60.1-03(1).

There is no separate civil action. District court or municipal court, whichever holds the case.

FILING FEE

The source does not state a specific filing fee for a general Chapter 12-60.1 conviction-sealing petition; the current court fee should be verified before a user pays.

No fee amount is stated by any committed North Dakota source for a Chapter 12-60.1 petition, so this packet states none and offers no fee-waiver application. Ask the clerk what the current fee is, and ask the clerk about an application to proceed without payment of fees, before paying anything.

COPIES

Serve the prosecuting attorney first. Then file the petition, the proposed order and the proof of service with the clerk of the existing criminal case, and keep a complete copy of everything filed.

AFTER YOU FILE

The court may hold a hearing no earlier than 45 days after filing; the petitioner must prove the sealing factors by clear and convincing evidence. If denied, the court may prohibit refiling for up to one year for good cause.

WHEN TO STOP AND GET HELP

1. The court sets a hearing.
A hearing may not be held earlier than 45 days after filing. If the court sets one, attend it. This packet does not prepare a hearing appearance; ask the clerk what the court expects and seek counsel if the prosecutor objects.
2. The prosecuting attorney objects, or contests the petition.
The prosecutor is expected, to the extent practicable, to notify and seek input from law enforcement, witnesses, victims and correctional authorities. A contested petition is beyond this packet – seek counsel.
3. The petitioner cannot prove the sealing factors by clear and convincing evidence.
The burden is clear and convincing evidence on every factor in § 12-60.1-04(1). Do not file on the assumption that an unopposed petition is granted.
4. The petition is denied.
If the petition is denied the court may prohibit refiling for up to one year for good cause. Filing an unprepared petition can cost a year; seek counsel before refiling.
5. The offence is a registration offence, a violent or intimidating felony in the firearm-disability period, or an impaired-driving offence.
Chapter 12-60.1 does not reach these. An impaired-driving record uses N.D.C.C. § 39-08-01.6 instead. Do not file this packet on an excluded offence.

WHAT SEALING DOES AND DOES NOT REACH

North Dakota court sealing reaches court and prosecution records only;

federal, tribal, out-of-state, BCI criminal-history, and private background-check records are not cleared by North Dakota sealing.

IMPORTANT

This North Dakota RCAP draft is legal information, not legal advice, and does not guarantee eligibility or any court, agency, or pardon outcome. North Dakota is a sealing-first state; relief depends on the exact court record, charge, outcome, sentence completion, restitution, new-conviction history, and which agency holds the record.

Prepared by petitioner using LegalEase RCAP. This is not an official court form.

IN THE DISTRICT COURT OF THE STATE OF NORTH DAKOTA

STATE OF NORTH DAKOTA,
Plaintiff,

v.

JORDAN AVERY SAMPLE,
Petitioner.

DOCKET NO.: 08-2018-CR-00123

JUDICIAL DISTRICT: South Central Judicial District

PETITION TO SEAL CRIMINAL RECORDS PURSUANT TO N.D.C.C. CHAPTER 12-60.1

STATUTORY AUTHORITY

N.D.C.C. § 12-60.1-02(1)(a) – Misdemeanor conviction sealing under Chapter 12-60.1: no new conviction for at least 3 years before filing.

N.D.C.C. § 12-60.1-02 – Conviction sealing under N.D.C.C. § 12-60.1-02: a misdemeanor conviction (guilty plea or finding) may be sealed with no new conviction for at least 3 years before filing; a felony conviction with no new conviction for at least 5 years before filing; and an unconditional gubernatorial pardon can support a sealing petition.

N.D.C.C. § 12-60.1-04 – For a conviction-sealing petition the petitioner must prove, by clear and convincing evidence, good cause, that the benefit to the petitioner outweighs the presumption of openness, completion of all imprisonment and probation, payment of all restitution, and that reformation/rehabilitation warrants relief.

I. JURISDICTION AND VENUE

1. This Court has jurisdiction over this matter as the District Court of Burleigh County, North Dakota, where the proceedings occurred.
2. Venue is proper in this Court because the criminal proceedings that are the subject of this petition occurred in Burleigh County, North Dakota.

II. PARTIES

3. Petitioner is Jordan Avery Sample, whose address is 412 North Sample Avenue, Bismarck, ND 58501.
4. Plaintiff is the State of North Dakota.
5. Petitioner has also been known as: Jordan A. Sample; Jordan Avery Sample-Reed.

III. FACTS AND CASE HISTORY

6. On or about February 1, 2018, Petitioner was charged with Theft of property by Bismarck Police Department.
7. The matter was assigned Docket Number 08-2018-CR-00123.
8. On June 1, 2018, the matter was resolved with the following disposition: Convicted.
9. The offense grade was: Class A misdemeanor.
10. Charge statutory reference: Section N.D.C.C. § 12.1-23-02.

IV. ELIGIBILITY ALLEGATIONS

11. Petitioner may be eligible for sealing on the following basis: Misdemeanor conviction sealing under Chapter 12-60.1.
12. Petitioner has not been convicted of a new crime during the 3-year period immediately before this Petition is filed: Petitioner has no conviction of any new crime in North Dakota or elsewhere at any time after August 14, 2019.
13. All terms of imprisonment and probation in this case are complete as of August 14, 2019.
14. All restitution ordered in this case has been paid: paid in full on August 14, 2019.
15. Petitioner's complete criminal history, including North Dakota, other states, federal court and foreign countries, is: One North Dakota misdemeanor conviction, this case. No other convictions in North Dakota, in any other state, in federal court, or in any foreign country.
16. All of Petitioner's prior and pending charges, and all deferred, stayed or continued-for-dismissal matters, are: No prior charges and no pending charges. No deferred, stayed, or continued-for-dismissal matters in any court.
17. Petitioner's prior pardon, sealing, or return-of-arrest-record requests in any forum are: No prior pardon, sealing, or return-of-arrest-record request has been made in any forum.
18. Petitioner's address history from the date of the offence to the date of this Petition is: 412 North Sample Avenue, Bismarck, ND 58501 (2020 to present); 88 Example Street, Apartment 3, Mandan, ND 58554 (2017 to 2020)
19. Petitioner's reformation and rehabilitation are shown by: Continuous employment since 2019, completion of a two-year certificate in 2022, stable housing since 2020, and volunteer service with a community food program.
20. Petitioner asks the Court to grant sealing because: The conviction is now more than six years old, it continues to appear on employment background checks, and it is the only criminal matter in Petitioner's history.

IMPORTANT: Petitioner may be eligible; this document does not guarantee eligibility or a court outcome.

V. REQUESTED RELIEF

WHEREFORE, Petitioner respectfully requests that this Court:

- (a) Find that the Petitioner has shown, by clear and convincing evidence, good cause to seal, that the benefit to the Petitioner outweighs the presumption of openness of court records, that all terms of imprisonment and probation are complete, that all restitution has been paid, and that the Petitioner's reformation and rehabilitation warrant sealing;
- (b) Order that the court and prosecution records in the above-captioned criminal case be sealed under N.D.C.C. Chapter 12-60.1; and
- (c) Grant such other and further relief as this Court deems just and appropriate.

VI. VERIFICATION

I, Jordan Avery Sample, declare that the statements made in this petition are true and correct to the best of my knowledge, information, and belief.

Jordan Avery Sample
412 North Sample Avenue, Bismarck, ND 58501

Date: _____

[NOTE: Date of birth and Social Security Number should be added by petitioner if required by the applicable form or local court rules.]

FILED WITH THIS PETITION

- [Proposed] Order to Seal Criminal Records
- Proof of Service on the Prosecuting Attorney

Prepared by petitioner using LegalEase RCAP. This is not an official court form.

IN THE DISTRICT COURT OF THE STATE OF NORTH DAKOTA

STATE OF NORTH DAKOTA v. JORDAN AVERY SAMPLE

DOCKET NO.: 08-2018-CR-00123

[PROPOSED] ORDER

AND NOW, this _____ day of _____, 20____, upon consideration of the Petition filed herein, and any response thereto, it is hereby ORDERED and DECREED that:

The court and prosecution records in the above-captioned criminal case are SEALED under N.D.C.C. Chapter 12-60.1.

Sealing prohibits disclosure of the existence or the contents of the sealed court and prosecution records except as authorized by order of this Court.

Chapter 12-60.1 sealing does not reach BCI criminal history record information or Criminal Justice Data Information Sharing System data; federal, tribal, out-of-state, and private background-check records are not cleared by North Dakota sealing.

BY THE COURT:

J.

Prepared by petitioner using LegalEase RCAP. This is not an official court form.

PROOF OF SERVICE ON THE PROSECUTING ATTORNEY

Service of this Petition and the proposed Order on the prosecuting attorney is made under N.D.C.C. § 12-60.1-03(4), by the means permitted by N.D.R.Crim.P. 49 and N.D.R.Civ.P. 5(b). Service precedes filing, and this proof of service is filed with the Petition.

I certify that on _____, I served a copy of this Petition upon the prosecuting attorney at the following address:

[PROSECUTING ATTORNEY ADDRESS – CONFIRM WITH CLERK OF COURT]

Service method: [personal delivery / first-class mail / other as permitted by applicable court rules]

Jordan Avery Sample

Date: _____

Prepared by petitioner using LegalEase RCAP. This is not an official court form.